IMPLEMENTING RULES AND REGULATIONS OF REPUBLIC ACT NO. 12287 OR THE "DECLARATION OF STATE OF IMMINENT DISASTER ACT"

RULE I
GENERAL PROVISIONS

Section 1. ***Title.*** These Rules and Regulations shall be known and cited as the "Implementing Rules and Regulations (IRR) of Republic Act (R.A.) No. 12287, otherwise known as the *Declaration of State of Imminent Disaster Act*."

Section 2. ***Purpose.*** These Rules are hereby promulgated and adopted to prescribe the manner, procedures, and guidelines for the implementation of R.A. No. 12287, approved on September 12, 2025, to achieve its intentions and objectives.

Section 3. ***Declaration of Policy.*** This IRR adheres to the policy of the State to uphold the constitutional right of the people to the protection of their life and property and the promotion of the general welfare. Towards this end, the State shall establish a mechanism that enables the government to implement anticipatory action measures based on forecasts and risk assessments, thereby empowering communities to take early action to protect lives and livelihoods before disasters strike.

Section 4. ***Construction and Interpretation.*** This IRR shall be construed and interpreted liberally in the context of the Declaration of Policy under Section 2 of R.A. NO. 12287. Any doubt in the interpretation of this IRR shall be resolved in a manner consistent with the said policy and the promotion of general welfare.

Section 5. ***Definition of Terms***

a. **Anticipatory Actions** refer to actions taken to reduce the adverse humanitarian and other impacts of a forecasted hazard before it occurs, or before its most acute impacts are felt;

b. **Cascading Hazards** refer to hazards with a systematic causal relationship and expressed in a sequence of secondary events in natural and human systems that lead to physical, environmental, societal, or economic disruption;

c. **Catastrophic Event** refers to any natural phenomenon or occurrence, which, by reason of its magnitude, severity, or scope, produces substantial and adverse effects upon ecological systems and human communities, and which is reasonably anticipated to result in widespread disruption, systematic failure of

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critical infrastructure, and material alteration of prevailing environmental conditions;

d. **Critical Infrastructure** refers to physical structures, facilities, networks, and other assets which provide services that are essential to the social and economic functioning of a community or society;

e. **Declaration of a State of Imminent Disaster** refers to the declaration made in anticipation of a highly probable disaster with projected catastrophic impacts based on forecast and on the results of pre-disaster risk assessment to supplement national and local resources in preventing or mitigating damages and losses;

f. **Hazard**, for purposes of this IRR, refers to a hydrometeorological, geological, and climatic hazard that can be modeled and forecasted within the allowable or sufficient lead time before impact, such as but not limited to Severe Winds, Storm Surge, Floods, Rain-induced Landslides, and Lahar, caused by various Weather Systems and climate hazards such as drought;

g. **Imminent Disaster** refers to a highly probable catastrophic event with severe projected impacts as a result of the compounding effect of hazard, exposure, and vulnerability;

h. **Lead Time** refers to the period between the issuance of a forecast and the expected or estimated occurrence of a predicted event. The time span can range from hours to days, which may depend on the nature and scale of the forecasted hazard;

i. **Pre-Disaster Risk Assessment** refers to the process of evaluating a hazard's level of risk given the degree of exposure and vulnerability in a specific area at any given time. It presents the possible impacts on the population, economy, critical infrastructure, utilities, and ecosystem services and serves as a basis to determine the appropriate level of response actions from the national government agencies (NGAs) down to the Local Government Units (LGUs);

j. **Public Health and Safety** refers to conditions and measures aimed at protecting the life, health, and well-being of the population from hazards and emergencies, including disease prevention, health service continuity, and mitigation of health-related risks;

k. **Severe** refers to an impact level with major, large-scale, and possibly catastrophic damage or disruption, with anticipated collapse in the socio-economic systems in the affected areas;

l. **Social Protection Programs** refer to interventions implemented by the government to reduce vulnerability, build resilience, and support the affected or at-risk populations, including but not limited to safety nets, social insurance, and social assistance; and

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m. **Social Protection Delivery Systems** refer to the set of mechanisms, processes, and infrastructure used to identify, register, verify, and provide support to individuals and households in need.

RULE II
CRITERIA FOR DECLARATION AND LIFTING OF A STATE OF IMMINENT DISASTER

Section 1. ***Scope and Coverage.*** This IRR shall cover hazards, as defined under Section 3, par. (d) of R.A. No. 12287, with projected catastrophic impacts that are categorized as "severe," or its equivalent, based on forecast and the results of a pre-disaster risk assessment.

Health hazards arising from or exacerbated by hydrometeorological, geological, and climatic hazards shall be included within the scope of anticipatory action measures of this IRR.

Section 2. ***Triggers and Thresholds.*** The State of Imminent Disaster may be declared when any of the following hazards are projected to cause impacts that are categorized as "severe" or its equivalent:

a. **Hydrometeorological and Geological Hazards.** Mandated government science agencies shall provide forecasts of "severe" impacts or its equivalent for hydrometeorological and geological hazards, such as, but not limited to, severe winds, storm surge, floods, rain-induced landslides, and lahar, caused by various weather systems.

b. **Climatic Hazards such as Drought.** Mandated government science agencies shall provide forecasts, such as Meteorological Drought Outlook, that can be used as the basis for triggering anticipatory actions for agricultural and hydrological drought.

The NDRRMC, upon consultation with relevant stakeholders, shall develop the operational guidelines, including the definition of triggers and thresholds for identified hazards, within the period provided in Section 14 of R.A. No. 12287.

Impact forecast models and thresholds for hazards with a warning lead time that are currently shorter than the action lead time, as provided by law, shall be continuously developed by the concerned government agencies.

Section 3. ***Lead Time.*** The State of Imminent Disaster may be declared for a period between the issuance of a forecast and the expected or estimated occurrence of a predicted event. Following such declaration, appropriate anticipatory action measures pursuant to R.A. NO. 12287 and this IRR shall be immediately implemented, provided, that the same

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shall not go below the minimum limitations set forth under Section 6, par. (b) of R.A. No. 12287 or within the identified allowable period per hazard to be determined in the operational guidelines.

Section 4. ***Other Factors Affecting the Criteria for Declaration.*** In addition to the established triggers and thresholds, the following may be considered for the declaration of a State of Imminent Disaster:

a. Impact on Critical Sectors, such as society and economy, agriculture, environment, business, industry, and critical infrastructure systems;

b. Local risk profiles of areas forecasted to be affected by an imminent disaster;

c. Institutional capacities of the Local Government Units for regular preparedness to respond to the forecasted hazard; and

d. Potential for compounded and cascading hazards in the area;

The parameters and indicators for the other factors shall be further detailed in the operational guidelines.

Section 5. ***Pre-Disaster Risk Assessment.*** The National and Regional Disaster Risk Reduction and Management Councils shall utilize its existing mechanism for pre-disaster risk assessment using a multi-hazard approach and be guided by the established triggers and thresholds for the recommendation to declare a State of Imminent Disaster in consideration of the lead time by the forecasted hazard.

Section 6. ***Duration and Lifting of State of Imminent Disaster.*** The State of Imminent Disaster may be lifted in consideration of the following grounds:

a. Upon the occurrence of such forecasted hazard, as evidenced by the advisories from mandated government science agencies, incident report, situational report, or damage assessment. In such cases, the concerned government agencies and LGUs shall shift to regular response and early recovery activities;

b. When the forecasted projected impacts are not met within the allowable lead time as a result of the pre-disaster risk assessment.

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RULE III
AUTHORITY TO DECLARE AND LIFT A STATE OF IMMINENT DISASTER

Section 1. ***National Disaster Risk Reduction and Management Council (NDRRMC).*** The NDRRMC, through a Resolution, shall recommend to the President the declaration of a State of Imminent Disaster, in whole or in parts of the country. This recommendation shall

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be informed by the results of the existing government mechanism for pre-disaster risk assessment and guided by the established triggers and thresholds, and other factors affecting the criteria as stated under Rule II of this IRR for the recommendation of a State of Imminent Disaster. The recommendation shall be issued no later than three (3) days prior to the expected impact.

The NDRRMC, through the OCD, shall disseminate to RDRRMCs the LGUs covered by the declaration of State of Imminent Disaster.

Section 2. ***Regional Disaster Risk Reduction and Management Councils (RDRRMCs).*** The RDRRMCs, including the Metro Manila Disaster Risk Reduction and Management Council for the National Capital Region, shall adopt the same mechanism as provided under Rule III, Section 1 of this IRR and recommend the declaration of a State of Imminent Disaster to the Local Government Units under its jurisdiction.

The Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) may adopt the mechanism outlined in Rule III, Section 1 of this IRR and, as deemed necessary, recommend to the concerned LGUs within its territorial jurisdiction the declaration of a State of Imminent Disaster.

In cases where the RDRRMC receives a request from the Provincial, City, or Municipal DRRMC to declare a State of Imminent Disaster in their locality, the RDRRMC shall immediately assess and provide a recommendation within twenty-four (24) hours based on the set triggers and thresholds as provided under Rule II of the IRR.

Section 3. ***Local Government Units.*** The Local Chief Executives (LCEs), upon the recommendation of the RDRRMC, may declare a State of Imminent Disaster for multi-hazard through an Executive Order in their respective jurisdictions that are forecasted to be affected by an imminent disaster.

In the case of an LGU not covered under a national declaration of a State of Imminent Disaster, the RDRRMC may recommend, as necessary, based on local scenarios.

In cases where there is reasonable certainty that the LGU will be affected by the forecasted hazard as a result of the pre-disaster risk assessment, the Local Disaster Risk Reduction and Management Council (LDRRMC) shall coordinate and report with the RDRRMC to recommend the declaration of a State of Imminent Disaster.

In the event that a Province or Region is declared under a State of Imminent Disaster, all LGUs within its territorial jurisdiction shall adopt such declaration and ensure alignment in preparedness and response measures.

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Section 4. ***Authority for Lifting a State of Imminent Disaster.*** In cases provided under Rule II, Section 6 of this IRR, the following shall have the authority to lift the state of imminent Disaster:

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a. The President, at the national level, upon recommendation of the NDRRMC

b. The Local Chief Executive at the local level, upon recommendation of the RDRRMC

RULE IV
ANTICIPATORY ACTION MEASURES

Section 1. ***Implementation of Anticipatory Action Measures.*** Upon the declaration of the State of Imminent Disaster, appropriate anticipatory action measures shall be implemented before the impact of the imminent hazard or immediately upon the declaration of the State of Imminent Disaster, provided that the same shall not go below the minimum limitations set forth under Rule II, Section 3 of this IRR or within the identified allowable period per hazard to be determined in the operational guidelines. Concerned LGUs shall immediately undertake anticipatory action measures upon declaration.

Protocols shall be formulated as part of the disaster preparedness of NGAs and the LGUs, in accordance with their respective action plans.

Local authorities, including civil society organizations (CSOs), NGOs, private organizations, and other stakeholders, shall be adequately trained and equipped to execute these measures.

Nevertheless, NGAs and LGUs may implement anticipatory action measures before an imminent disaster, provided that, it is in the exercise of their discretion.

The anticipatory action measures identified shall be socially inclusive, locally led, conflict-sensitive, and environmentally sound, with the aim of protecting lives, livelihoods, and ecosystems. Anticipatory action measures shall respond to the following:

a. **Gender Equality, Disability, and Sociocultural Inclusion**. Anticipatory action measures shall be inclusive, conflict-sensitive, ensuring participation of the most vulnerable communities or groups, including children, women, youth, senior citizens, persons with disabilities, indigenous peoples, farmers, fisherfolk, and other marginalized sectors;

b. **"Do No Harm" principle**. Anticipatory action measures shall prevent the creation of new risks to, or do not exacerbate existing risks for the affected communities;

c. **Environmental safeguards**. Anticipatory action measures shall not be harmful to the environment and promote sustainable management of resources, avoiding social or ecological harm;

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d. **"No Regrets" principle.** Anticipatory action measures shall deliver long-term resilience and preparedness gains to the most vulnerable communities, even when a forecasted hazard does not materialize;

e. **Humanitarian standards.** Anticipatory action measures must be based on rights-based standards, including national standards, Sphere standards in humanitarian response, among others; and

f. **Alignment with DRRM Plans and Structures.** Designing, identification, planning, delivery, implementation, and monitoring of anticipatory action measures shall be in line with DRRM and preparedness plans, contingency plans, *Oplan Listo*, evacuation plans, early warning systems, and social protection systems, among others.

Section 2. ***Public Information and Advisory Systems.*** The DRRMCs at all levels, through mandated government agencies, shall ensure inclusive, timely, accurate, and coordinated issuance and dissemination of the following advisories and information to the relevant sectors and the general public:

a. Official notification of the declaration status and the specific anticipatory action measures being implemented;

b. Dissemination of official advisories across all communication platforms indicating the recommended anticipatory action measures required of the public and critical sectors, including, but not limited to, agriculture, social welfare, health, environment, lifelines, livelihood, and transportation, with due consideration for geographically isolated and disadvantaged areas (GIDAs); and

c. Timely, coordinated, and impact-based disaster risk advisories shall be issued and disseminated prior to the occurrence of a hazard, which may warrant the declaration of a State of Imminent Disaster. Such advisories shall include sector-specific anticipatory action guidance for society and economy, agriculture and food systems, environment, business, industry, and critical infrastructure systems.

Section 3. ***Mobilization and Strategic Prepositioning of Critical Supplies and Operational Assets.*** Relevant DRRMCs at all levels shall issue the necessary memorandum or office order to ensure the implementation of the following measures:

a. **Distribution of Critical Supplies** such as but not limited to:

i. Essential relief commodities, both food and non-food items;
ii. Essential medical supplies, pharmaceuticals, and public health materials such as sanitation and hygiene kits;

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iii. Ensure adequate stockpiles of animal feeds, forage, emergency water supplies, and mobile veterinary kits, including cooling materials and rapid diagnostic tools, to prevent livestock mortality during and immediately after hazard impacts; and
iv. Ensure sufficient water for hygiene, hydration needs, and electricity supply for continuous lighting and power of essential equipment for evacuation centers to support day-to-day needs.

b. **Operational Asset Deployment**

i. Pre-deployment and pre-positioning of heavy equipment and logistics convoys for rapid clearing during pre- and post-hazard impact;
ii. Activation of transportation and logistics assets necessary for pre-emptive evacuation and supply distribution; and
iii. Mobilization and prepositioning of response assets including personnel and their capabilities

Section 4. ***Pre-Emptive Evacuation and Infrastructure Protection***

a. **Evacuation Protocols**

i. Conduct of pre-emptive or mandatory evacuation for potentially affected population for safe transport and assistance
ii. Provide assistance or augmentation on the conduct of pre-emptive evacuation of livestock, pets, agricultural crops, and other livelihood assets forecasted to be affected to safer grounds based on risk assessment and other information or advisories.

b. **Camp Coordination and Camp Management and Internally Displaced Persons' Protection**

i. Activate safe and inclusive evacuation centers, and other designated evacuation facilities, as applicable, for identified pre-emptive evacuees;
ii. Implementation of protocols and services for camp coordination and camp management, and internally displaced persons' protection, consistent with existing guidelines on camp coordination and camp management; and
iii. Pre-positioning and distribution of emergency shelter materials, and establishment of WASH and camp facilities.

c. **Critical Infrastructure Lifelines and Utilities Safeguarding**

i. Rapid safety inspection and necessary structural reinforcement of evacuation centers and other critical infrastructures;

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ii. Implementation of relevant pre-crisis activities such as load-shedding, water-rationing to avoid cascading outages, deployment of alternate transport and logistics support;
iii. Coordination with local cooperatives and authorities; and
iv. Pre-deployment of mobile cell-on-wheels or satellite communication units

Section 5. ***Mobilization of Accredited Community Disaster Volunteers (ACDVs), CSOs, the private sector, and other volunteer groups***

a. Mobilization of ACDVs, CSOs, private sector, and other Volunteer Groups in support of implementing Anticipatory Action Interventions.

b. Implementation of a strategic deployment plan for immediate and coordinated support in areas covered by the declaration

Section 6. ***Distribution of Prepositioned Food and Non-Food Items (FNIs)***

a. **Local Level:**

i. Distribute readily available FNIs to the forecasted affected population;
ii. Tap or utilize existing agreements with suppliers for additional requirements for distribution; and
iii. Procure, mobilize, strategically preposition, and distribute FNIs to the forecasted affected population

b. **Regional and National Level:**

i. Augment LGU resources for immediate distribution of FNIs, including, but not limited to, shelter strengthening kits;
ii. Tap or utilize existing agreements with suppliers for additional requirements for immediate augmentation to LGUs

Section 7. ***Social Amelioration Program***

a. **Identification and targeting of beneficiaries**. NGAs and LGUs shall use the Community-Based Monitoring System (CBMS), or the prevailing government registry, to identify potentially affected families, while prioritizing the most vulnerable. A harmonized approach to identify the most vulnerable shall also be defined. In the absence of such, NGAs and LGUs shall use readily available and official social databases in the identification of beneficiaries, using the harmonized methodology.

While all potentially affected families shall be covered by anticipatory action measures, prioritization shall be applied based on exposure and vulnerability, which shall be jointly determined by implementing agencies and LGUs. Data on the identified and served beneficiaries shall be shared with other agencies

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implementing anticipatory action (AA) or early response, in respect of data privacy regulations, to ensure complementarities and avoid duplication;

b. **Menu of Social Amelioration Programs**. The social amelioration program shall refer to existing or to be developed social protection programs that provide necessary support to identified or targeted beneficiaries to better prepare for, cope with, and recover from the potential adverse impacts of hazards, such as but not limited to:

i. **Anticipatory Multipurpose Cash Transfer and Value Vouchers** – immediate distribution of financial assistance or distribution of vouchers, with appropriate technical support, for the purchase of the needs of vulnerable families in the forecasted areas to be affected, intended for food, water, shelter, strengthening materials, medicines, transportation, and other essential critical supplies for evacuation;

ii. **Multipurpose Commodity Voucher** – immediate distribution of vouchers for the redemption of the needs of beneficiaries such as food, water, shelter strengthening materials, medicines, transportation, and other essential critical supplies for evacuation; and

iii. NGAs and LGUs shall provide the necessary assistance at a rate that will be identified by implementing agencies under the NDRRMC and the LGUs.

c. **Program Modality and Delivery**. NGAs and LGUs shall provide anticipatory cash transfers and vouchers through multiple modalities, such as digital payments and direct cash payouts through accredited suppliers. Systems of existing social protection programs may also be used and mobilized to deliver social amelioration programs.

NGAs and LGUs shall issue the necessary guidelines for the implementation and delivery of social amelioration programs.

Section 8. ***Implementation of Contingency Plans to Mitigate Damage to Agri-fisheries Products and Food Supply***

a. **Identification and targeting of beneficiaries**. The Department of Agriculture (DA), its Regional Field Offices, and LGUs shall use the Registry Based System for Basic Sectors in Agriculture (RSBSA) and the Fisherfolk Registry (FishR) System, Bureau of Animal Industry (BAI) livestock registries in identifying potentially affected beneficiaries and communities;

b. **Activation of Anticipatory Action protocols**. To ensure timely relocation and mobilization of resources, early action guidelines shall be established, such as, but not limited to, clear procedures for the identification of the most vulnerable farming and fishing communities, location of storage areas, provision of agricultural and fishery inputs, animal disease prevention and control,

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mechanisms on incentives such as cash-for-work, food-for-work, and other modalities, and facilitation of market linkages.

Section 9. ***Anticipatory Management for the Reduction of Emerging Threats to Public Health and Safety***

a. **Local Level**

i. Activate Health Cluster, for close monitoring and implementation of anticipatory measures in reference to the forecasted impact;
ii. Activate anticipatory action plans and service continuity plans, including surge capacity plans for the health facilities;
iii. Distribute prepositioned essential health commodities such as medicines, equipment, and supplies, prioritizing areas with heightened or projected risk;
iv. Ensure readiness of temporary medical tents, mobile clinics, and other deployable health infrastructure near evacuation sites or high-risk zones;
v. Place on standby, in accordance with existing policies and guidelines, all health emergency response teams, healthcare workers, and accredited volunteers for possible mobilization; and
vi. Assess and determine the need for additional appropriate healthcare workers and other essential personnel, and health commodities for possible augmentation to ensure adequate surge capacity and uninterrupted health service delivery

b. **Regional and National Levels**

i. Close monitoring and implementation of anticipatory measures in reference to the forecasted impact;
ii. In the event that the DOH Central Office or any of its implementing health facilities is forecasted to be affected, activate and implement their respective anticipatory action plans and service continuity plans, including the surge capacity plans of the DOH Hospitals as necessary to ensure the continuity of operations and delivery of essential health services; and
iii. Provide augmentation of appropriate healthcare workers and other essential personnel, essential health commodities such as medicines, equipment, and supplies, including temporary medical tents, mobile clinics, and other deployable health infrastructure, based on the assessment at the local level

Section 10. ***Operationalization of other Sectoral Anticipatory Action Interventions***

a. **Education**

i. Implementation of anticipatory action plans by the Education Cluster to ensure the safety of learners, personnel, and education facilities;

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ii. Ensure the learning continuity through the implementation of alternative learning modalities and other preparedness measures.

b. **Transportation**

i. Pre-inspection and rapid clearing of bridges and road obstructions;
ii. Designation of alternate routes and traffic management teams; and
iii. Activation of EOCs of airport, seaport, and other transport service facilities; standby for rerouting and passenger support.

c. **Economy**

Price monitoring and anti-profiteering measures for essential goods and commodities pre-hazard impact.

d. **Environment**

i. Cleaning, clearing, and declogging of waterways and drainage systems following environmental standards;
ii. Conduct tree trimming, pruning and shearing; rapid reinforcement of vegetative buffers, and rapid slope and coast stabilization in delineated flood, landslide, and coastal erosion zones, such as but not limited to sandbagging and other makeshift interventions; and
iii. Reinforcement of waste-management policies and practices for safe segregation and disposal of debris and livestock carcasses

e. Implement other sectoral Anticipatory Action interventions, as may be necessary, based on the forecasted impact.

RULE V
FUNDING AND BUDGETING

Section 1. ***Programming of Anticipatory Action Measures and its Sources*:**

a. **National Government Appropriations.** All relevant national government anticipatory action implementing agencies shall ensure that anticipatory action measures are included in their regular agency Programs, Projects, and Activities (PPAs) to be funded by their regular agency budgets as Anticipatory Action Funds and be properly included in the General Appropriations Act.

b. **Local Government Units.** Without prejudice to Section 21 of R.A. No. 10121, or the "Philippine Disaster Risk Reduction and Management Act of 2010", LGUs may, in addition to the regular programming of DRRM interventions in their Local DRRM Plan and Local DRRM Plan Investment Plan, include a portion of

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no more than 10% of the 70% of the annual Local Disaster Risk Reduction and Management Fund (LDRRMF) for anticipatory action measures.

LGUs, however, may obtain funds from other sources to implement anticipatory action measures. The other local, national, and international funds may also be sourced from the following[1]:

i. Unexpended balance of the LDRRMF in the preceding years within the five-year validity period accrued to the Special Trust Fund;
ii. Funds received from other LGUs and other sources such as:

- Funds received from existing partners, private or international donors;
- Official Development Assistance;
- Donations of other LGUs as supported by the 1987 Philippine Constitution and the Local Government Code of 1991, including the existing guidelines for utilization of the Local DRRM Fund; *and*
- Other available funds of LGUs

LGUs may group themselves, consolidate, or coordinate their efforts, services, and resources for purposes commonly beneficial to them in accordance with the law.

Funding should be strategically directed toward PPAs that are relevant to, and demonstrably contribute to, mitigating the specific risks identified in these assessments and the corresponding target settings in the current LDRRMP.

All anticipatory action measures mobilized may be charged to the 70% of LDRRMF and other sources as stated in this IRR, provided that the criteria as defined by the supplementary operational guidelines are met with the necessary documents.

All early preparedness actions necessary to enable the implementation of the anticipatory action measures identified or planned by NGAs and LGUs shall be funded through the regular DRRM funds and other sources as stated in this IRR.

c. NGAs and LGUs may request fund augmentation for anticipatory action programs to be charged against the National DRRM Fund, subject to the approval of the President, in accordance with the recommendation of the NDRRMC and the submission of complete documentary and funding requirements by the requesting implementing agencies and LGUs.

Section 2. ***Disbursement of Funds for Anticipatory Action.*** Funds allocated for anticipatory action shall be disbursed immediately for anticipatory action until its lifting, subject to pertinent provisions of existing procurement law, rules and regulations, and any

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[1] *4.0 Sources and Allocation of LDRRMF; COA Circular No. 2012-002*

relevant policies issued by the Government Procurement Policy Board (GPPB), as well as the applicable budgeting, accounting, and auditing laws, rules, and regulations.

Except for funding sources other than those allocated for anticipatory action in the regular agency budgets, local and national DRRM Funds, disbursement of funds for anticipatory interventions shall be based on the anticipated extent of damages and disruption forecasted in the pre-disaster risk assessment.

In the implementation of anticipatory action measures for hydrometeorological and geological hazards, disbursements for interventions to be undertaken beyond a lead time of three (3) days shall not exceed 30% of the allocation for anticipatory action, while up to 70% thereof shall be allowable to be disbursed for interventions to be implemented within a maximum lead time of three (3) days.

For slow-onset hazards such as drought, the applicable timelines and rate of disbursements shall be further detailed in the operational guidelines based on the forecasted impact of the climatological hazard.

The graduation of disbursement shall not apply to other funding sources that may be lawfully utilized for anticipatory action, including agency budgets, external grants or donations, or other sources authorized by law.

Section 3. ***Changes or Non-occurrence of Impact Forecast***

In line with the objectives of this IRR, all anticipatory actions undertaken by NGAs, LGUs, and partners shall adhere to the "No Regrets Principle," where actions taken in anticipation of forecasted impacts shall remain beneficial to the population even if it does not fully materialize.

Upon the lifting of the state of imminent disaster, the intended beneficiaries of the perishable goods and services shall remain the same, and all provisions will continue to be delivered to them in adherence to the "No Regrets Principle."

NGAs shall strictly observe the validity of appropriations and the reversion of funds. After the end of validity period, all unreleased appropriations, unobligated allotments, and obligated allotments for goods, services, or projects not yet delivered, rendered, or completed, and accepted shall revert to the unappropriated surplus of the General Fund in accordance with Section 28, Chapter 4, Book VI of E.O. No. 292 and shall not thereafter be available for expenditure except by subsequent legislative enactment.

In the case of LGUs, the same shall accrue to the Special Trust Fund.

Third parties that have been engaged by the NGAs and LGUs for their services shall be subject to just compensation on a *quantum meruit* basis, chargeable against the allocated funding for implementation of anticipatory action measures.

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Storage, processing, and distribution of food and non-food relief items acquired during the declaration, which are charged against the allocated funding for implementation of anticipatory action measures of the NGA or LGU concerned, shall be managed by the National and Local Social Welfare Development, respectively, in accordance with established procedures.

Section 4. ***Development of Guidelines for Funding, Budgeting, and Utilization of Anticipatory Action Measures.*** The Department of Budget and Management and the Commission on Audit, in consultation with other relevant government agencies, shall develop and issue the necessary guidelines relative to the funding, budgeting, and utilization of anticipatory action measures.

RULE VI
MONITORING, REPORTING, AND EVALUATION

Section 1. ***Monitoring of the Declaration of State of Imminent Disaster.*** The Office of Civil Defense (OCD) shall monitor the areas declared by the President to be under a State of Imminent Disaster, while concerned government agencies shall report to the OCD within forty-five (45) days from the lifting of the State of Imminent Disaster, the following:

a. Status of Declarations at the local level;
b. Utilization of Anticipatory Action Funds; and
c. Estimated Economic and Social Costs Minimized.

A summary report on the overall status of areas declared under a State of Imminent Disaster shall be submitted by the OCD to the NDRRMC within seven (7) days from the submission of reports by the concerned agencies.

A monitoring and evaluation framework, guidelines, and community feedback mechanism shall be developed within 90 days after the approval of the IRR.

Section 2. ***Creation of the National Anticipatory Action Technical Working Group.*** To assist in the monitoring, reporting, and evaluation of the identified anticipatory action measures, and to ensure the complementation and harmonization of anticipatory action efforts, the National Anticipatory Action Technical Working Group (AA TWG) shall be created. This shall be composed of national government agencies, CSOs, basic sectors, and other relevant organizations. A separate NDRRMC issuance for the roles and responsibilities shall be developed after the approval of this IRR.

The National AA TWG, through the NDRRMC, shall create relevant operational policies and guidelines for the institutionalization and implementation of anticipatory action measures.

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RULE VII
CAPACITY DEVELOPMENT

The NDRRMC shall develop and implement a capacity development program for the concerned agencies and organizations under this IRR.

For this purpose, the National AA TWG shall lead and coordinate the implementation of the capacity development activities under this IRR.

All concerned NGAs, LGUs, CSOs, basic sectors, and other relevant stakeholders shall actively participate in the development of capacity development initiatives. These entities shall designate focal persons and allocate resources, as necessary, to support the implementation of the program within their respective jurisdictions.

Social preparation measures, such as, but not limited to, community-based early warning systems and early action mechanisms, shall likewise be considered in the design and implementation of capacity development initiatives.

RULE VIII
FINAL AND TRANSITORY PROVISIONS

Section 1. ***Transitory Arrangements for Ongoing Declarations.*** All declarations and actions issued prior to the effectivity of this IRR shall remain in force until completed or duly amended. Ongoing programs and activities shall be aligned with the provisions of this IRR within a designated transition period, during which concerned agencies and LGUs shall undertake the necessary administrative and operational adjustments to ensure compliance.

Section 2. ***Review of the IRR.*** A review of the Implementing Rules and Regulations (IRR) shall be conducted three (3) years after its effectivity to assess its effectiveness, practicality, and coherence with the provisions of the law. The review shall utilize the learning, evidence, and evaluation results generated during the implementation period.

Based on the findings of the review, the IRR may be amended or updated as necessary, upon the recommendation of the National AA TWG and endorsement by the NDRRMC for approval through the prescribed process.

Section 3. ***Separability Clause.*** If any provision of this IRR is declared unconstitutional by a tribunal of competent authority, the remainder thereof not otherwise affected shall remain in full force and effect.

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Section 4. ***Repealing Clause***. All administrative issuances by the NDRRMC member-agencies that are inconsistent with the provisions of this IRR are hereby repealed, amended, or modified accordingly.

Section 5. ***Effectivity***. This Act shall take effect immediately following its publication in the Official Gazette or any newspaper of general circulation in the Philippines and filing with the UP Office of the National Administrative Register.

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GILBERTO C. TEODORO, JR.
Chairperson, NDRRMC and
Secretary, Department of National Defense

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